

THE CHAIRMAN AND SPEAKER (SALARIES, ALLOWANCE AND PRIVILEGES) ACT, 1975.

¹Act No. LXXXII OF 1975

An Act to provide for the salaries, allowances and privileges of the Chairman of the Senate and the Speaker of the National Assembly.

WHEREAS it is expedient to provide for the salaries, allowances and privileges of the Chairman of the Senate and the Speaker of the National Assembly, and for matters connected therewith;

It is hereby enacted as follows:-

1. Short title and commencement.- (1) This Act may be called the Chairman and Speaker (Salaries, Allowances and Privileges) Act, 1975.

(2) It shall come into force at once and shall be deemed to have taken effect on the fourteenth day of August, 1975.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

- (a) "Assembly" means the National Assembly;
- (b) "Chairman" means the Chairman of the Senate as defined in the Constitution when he is not performing the functions of President;
- (c) "family", in relation to the Chairman or the Speaker, means his [spouse], legitimate children and step children residing with and wholly dependent on him;
- (d) "maintenance" in relation to a residence includes the payment of local rates and taxes and the provision of water, gas and electricity;
- (e) "official business", in relation to the Chairman and the Speaker respectively, means attending the sessions of the Senate, the Assembly and the Joint Sittings of Parliament, and includes such other functions or duties connected with the business of Parliament as may be performed or discharged by the Chairman and the Speaker;
- (f) "official residence" means the house reserved from time to time for use by the Chairman or the Speaker and includes the staff quarters and other buildings appurtenant to, and the gardens of, the residence;

¹For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt. III, p. 1081.

²Subs. by the Finance Act, 1996 (9 of 1996) s. II, for "wife or wives".

- (g) "Speaker" means the Speaker of the Assembly as defined in the Constitution when he is not performing the functions of President; and
- (h) Other words and expressions used but not defined in this Act have the same meaning as in the Constitution of the Islamic Republic of Pakistan or in the Fundamental and Supplementary Rules.

3. Salary. There shall be paid to the Chairman and the Speaker a salary at the rate of ¹[²forty thousand] rupees per mensem:

Provided that, if a person who has retired from the service of Pakistan is elected as Chairman or Speaker after the commencement of this Act, his pension shall be held in abeyance and shall not be payable for the period he holds the office of Chairman or Speaker.

4. Equipment allowance. The Chairman and the Speaker may, on his election as such, draw ³[⁴five thousand] rupees] as an allowance for equipping himself:

Provided that, during the ten years immediately preceding the said election, he had not drawn an allowance for the same purpose upon election or appointment as Chairman, Deputy Chairman, Speaker, Deputy Speaker, Federal; Minister, Governor or Minister of State or to a diplomatic office.

5. Allowances on taking up and laying down the office.- (1) the Chairman and the Speaker shall be entitled to claim actual expenses to the extent mentioned below from his ordinary place of residence to the seat of the Senate or, as the case may be, the Assembly on taking up office and from the seat of the Senate or the Assembly to his ordinary place of residence on laying down office:-

- (a) The actual travelling expenses for himself and his family;
- (b) The cost of transporting personal servants, not exceeding two, by the lowest class of accommodation; and
- (c) The cost of transporting household effects, not exceeding one hundred and twenty maunds, by goods train, steamer or other craft, excluding aircraft, and his personal car, if any.

¹Subs. and shall be deemed to have been so subs. by the Chairman and Speaker (Salaries, Allowance and Privileges) (Amdt.) Act, 1985 (2 of 1985), s.2, (w.e.f. 1-3-1985), for "four thousand rupees".

²Subs. by the Finance Act, 1996 (9 of 1996), s.11, for "seven thousand".

³Subs. by Act 2 of 1985, s.2.

⁴Subs. by Act 9 of 1996, for "four thousand".

(2) No claim shall lie for any travel or transportation not performed or effected within six months of the date of taking up or laying down office, as the case may be.

6. Sumptuary allowance. The Chairman and the Speaker shall receive sumptuary allowance at the rate of ¹²[six thousand] rupees] per mensem.

7. Transport. The Chairman and the Speaker ³[and the members of their families] shall be entitled to the use of an official car maintained at Government expense families]

8. Official residence.- (1) The Chairman and the Speaker shall be entitled, without payment of rent, to the use of a residence throughout his term of office, and for a period of fifteen days immediately thereafter, and no charge shall fall on him personally in respect of its maintenance.

⁴* * * * *

⁵[(1A) The assessed rent of house hired for the use of the Chairman or the Speaker shall in no case exceed ⁶[seventeen thousand] rupees] per mensem.]

(2) The official residence shall be furnished by Government at a cost not exceeding ⁷ ⁸[one hundred thousand] rupees].

(3) If at the time a Chairman or a Speaker enters upon his office, an official residence is not provided to him, he shall, until such residence is provided by the Government, be paid the actual expenditure incurred by him on furnished accommodation for himself and his family, subject to a maximum of ⁷⁶[seventeen thousand] rupees] per mensem.

(4) Where the Chairman or the Speaker chooses to reside in his own house, he may be paid a monthly sum of ⁷⁶[seventeen thousand] rupees] in lieu of the furnished accommodation and to cover all expenses on its maintenance:

Provided that no furniture or furnishings shall be provided therein at the cost of Government.

⁹[(5) The Chairman and the Speaker may establish a residential office which shall be furnished and facilities provided therein at Government expense.]

¹⁰**[8A. Residential Telephone, etc.]**—(1) The Chairman and the Speaker shall be entitled to a telephone to be installed at their residences at Government expense and shall be exempted from payment of its rental and charges of calls made therefrom within the country.

(2) A casual telephone facility shall be provided to the Chainman and the Speaker during their tour within the country.]

¹Subs. by the Chairman and Speaker (Salaries, Allowances and Privileges) (Amdt.) Act, 1985 (2 of 1985) s. 4.

²Subs. by the Finance Act, 1996 (9 of 1996) s. 11, for "three thousand".

³Ins. *ibid.*,

⁴Proviso omitted by the Finance Act, 1997, (22 of 1997) s. 6, which was previously amended by various enactments.

⁵Ins. and shall be deemed to have been taken effect (*w.e.f.* 1-3-1985) by Act. 2 of 1985. s. 5.

⁶Subs. by Act 9 of 1996. s. 11, for "eight thousand".

⁷Subs. by Act 2 of 1985. s. 5.

⁸Subs. by Act 9 of 1996, s. 11 for "sixty thousand".

⁹Added by Act 4 of 1999, s.11.

¹⁰New section 8A ins. by the Finance Act, 1996 (9 of 1996) s. 11.

9. Travelling allowance for journeys within Pakistan.- (1) Subject to the provisions hereinafter appearing, the Chairman and the Speaker when travelling on official business shall be treated as a first grade officer.

(2) When travelling on official business by rail, the Chairman and the Speaker shall be entitled—

- (a) to requisition at the cost of Government a reserved railway saloon, if available, or a two-berthed or four berthed first class compartment, including an air conditioned compartment if available on the train ;
- (b) to draw an allowance of ¹[one hundred and fifty rupees] for every twenty-four hours of the period of journey and an allowance of ³[seventy-five rupees] for a lesser period in addition to the daily allowance admissible under section 10 ;
- (c) to take with him, at Government expense, not more than two personal servants by the lowest class of accommodation when travelling by a two-berthed or four-berthed railway compartment and not more than four personal servants when travelling by a requisitioned railway saloon ;
- (d) to the cost of transporting personal luggage not exceeding three maunds when travelling by a railway compartment and not exceeding six maunds when travelling by a requisitioned railway saloon ; and
- (e) to take with him without payment of fare, the members of his family, not exceeding four, when travelling in a requisitioned railway compartment or a saloon.

(3) When travelling on official business by steamer or launch, the Chairman and the Speaker shall be entitled—

- (a) to draw the actual fare paid for himself;
- (b) to draw an allowance of ²[one hundred and fifty rupees] for every twenty-four hours of the period of journey, and ¹[seventy-five rupees] for a lesser period in addition to the daily allowance admissible under section 10;
- (c) to take with him, at Government expense, not more than two personal servants by the lowest class of accommodation ; and
- (d) to the cost of transporting personal luggage not exceeding three maunds.

¹Subs. by the Chairman and Speaker (Salaries, Allowances and Privileges) (Amdt) Act, 1985 (2 of 1985), s. 6.

²Subs, and shall be deemed to have taken effect (*w.e.f.* 1-3-1985), by the Chairman and Speaker (Salaries, Allowances and Privileges), (Amdt.) Act. 1985 (2 of 1985), s. 6.

(4) The Chainman or the Speaker may, if the public interest so demands, travel by air, in which case he shall be entitled-

- (a) to the actual air fare paid for himself;
- (b) to the cost of transporting personal luggage not exceeding one hundred pounds inclusive of the free allowance given by the air company ;
- (c) to requisition at the cost of Government, if he considers it necessary in the public interest, an aeroplane or a helicopter belonging to the Pakistan Air Force or a Provincial Government, subject to availability and in accordance with the rules framed by the relevant authority, or an aeroplane belonging to any flying club in Pakistan;
- (d) to take with him one member of his family when travelling by a commercial aeroplane or four members of his family when travelling by a requisitioned aeroplane, provided that no non-official shall be allowed to travel in a Pakistan Air Force aeroplane without the authority of the Ministry of Defence ;
- (e) to the cost of transporting not more than two personal servants by the lowest class of accommodation by rail or steamer ;
- (f) to the carriage of personal luggage by rail or steamer, subject to a maximum of three maunds ; and
- (g) to take with him by air one personal servant or a peon in lieu of the entitlement in clauses (e) and (f).

(5) The Chainman and the Speaker shall be entitled, for a journey performed on official business by road beyond a radius of five miles from his headquarters, to a mileage allowance of ¹[two rupees per kilometer] if a public conveyance is used or ¹[one rupee and fifty paise per kilometer] if a private car is used, and in any other case to an allowance at the rate of ¹[one hundred and fifty rupees] per day:

Provided that the allowance mentioned in this sub-section shall be admissible only in respect of—

- (a) a journey or that part of a journey which has to be undertaken by road in the public interest or in the absence of railway communication ; and
- (b) a short journey which cannot conveniently be undertaken by rail and which involves an absence from headquarters for more than eight consecutive hours.

(6) In respect of a journey performed on official business by road beyond a radius of five miles from his headquarters, the Chainman and the Speaker shall be entitled to receive the actual cost of transporting—

¹Subs, and shall be deemed to have taken effect (w.e.f. 1-3-1985), by the Chairman and Speaker (Salaries. Allowances and Privileges), (Amdt.) Act. 1985 (2 of 1985), s. 6.

- (a) not more than two personal servants, provided that the servants travelled by a conveyance other than that by which the Chairman or the Speaker travelled ; and
- (b) up to a maximum of three maunds of personal luggage:

Provided that the journey is performed to a place of halt in respect of which daily allowance admissible.

10. Daily allowance during halt.- (1) The Chairman and the Speaker, while on tour on official business, shall be entitled to receive a daily allowance of ¹[four hundred] rupees for each day of halt except that, when he stays in a reserved railway saloon, the allowance shall be twenty-five rupees per day.

(2) The allowance mentioned in sub-section (1) shall be admissible—

- (a) at half of the full rate for the day of arrival at, and departure from, the place of halt, but no daily allowance shall be admissible in respect of a place of halt from which the Chairman or the Speaker departs on the same day on which he arrived at it; and
- (b) except as provided in clause (a), at the full rate for first ten days of each continuous halt, at three-fourths of the full rate for the next twenty days and at half of the full rate thereafter.

²[(3) Where the Chairman or the Speaker on tour stays in a hotel because of non-availability of accommodation in any Government guest house or rest house, he shall be entitled to the reimbursement of actual rent charges of a small suite for the period of stay in that hotel, in addition to the daily allowance.]

11. Halt on tour. A halt on tour shall be treated as continuous halt unless terminated by an absence at a distance from the halting place exceeding five miles for a period which includes not less than seven successive nights.

12. Travelling allowance for journeys abroad. The Chairman and the Speaker when travelling on official business outside Pakistan shall be entitled to such travelling allowance as may be prescribed by Government from time to time.

13. Medical facilities. The Chairman and the Speaker and his family shall be entitled to medical facilities admissible under the Special Medical Attendance Rules, except that he and his family shall be entitled to receive medical treatment at his official residence.

14. Provident Fund.- (1) The Chairman and the Speaker may, at his option, become a subscriber to the General Provident Fund; and if he so opts, he shall subscribe to the Fund as a compulsory subscriber in accordance with the General Provident Fund (Central Services) Rules.

(2) A temporary advance may be granted to a Chairman or a Speaker from the amount standing to his credit in the General Provident Fund at the discretion of the Government for the purpose for which such advance may be granted to a subscriber under the said Rules.

(3) The grant of temporary advance under sub-section(2) shall, unless the Government otherwise directs, be subject to the conditions to which an advance granted to a subscriber under the aforesaid Rules is subject.

¹Subs. by the Finance Act, 1996 (9 of 1996),s.11, for “fifty”.

²Added by Act 4 of 1999, s.11.

15. Personal staff. The Chairman and the Speaker shall be entitled to such personal staff as may be prescribed by Government.

16. Compensation in case of air accidents.- (1) If the Chairman or the Speaker, while travelling by air on official duty, by any flight, scheduled or unscheduled including flight in a Government-owned aircraft of any type, dies or receives an injury as a result of an accident, the Government shall pay to the person or persons referred to in sub-section(2) a sum of ¹[three hundred thousand] rupees in the case of death and an amount to be determined by the Government having regard to scales of compensation applied by insurance companies in like cases, in the case of injury.

(2) The compensation shall be payable, in the case of injury, to the Chairman or, as the case may be, the Speaker, and, in the case of death, to such member or members of his family, or, if there be no such member, such other person or persons, as may be nominated by him, and in the absence of such nomination to his heirs.

(3) A nomination under sub-section(2) may be made, revoked or altered by a notice in writing signed by the Chairman or, as the case may be, the Speaker and addressed to the Accountant General, Pakistan Revenues.

17. Leave.- (1)The President may grant to the Chairman and the Speaker during his term of office, at any one time or from time to time, leave of absence for urgent reasons of health or private affairs, for a period not exceeding in the aggregate three months.

(2) The Chairman and the Speaker shall be entitled to receive leave salary of ²³[twenty thousand two hundred and fifty] rupees] per mensem.

⁴[**17A. Discretionary Grant.** The Chairman and the Speaker shall be entitled to authorized discretionary grant of six hundred thousand rupees per annum or such amount as may be decided by the Finance Committee of each House; and]

⁵[**18.Additional privileges.** The Federal Government may grant to the Chairman and the Speaker such additional privileges as it may deem fit.]

19. Power to make rules.- The Federal Government may, by notification in the official Gazette, make rules for carrying into effect the provisions of this Act.

⁶[**19A. Increase in emoluments.-**The salary, allowances and privileges of Chairman and Speaker shall automatically be revised alongwith the revision of the emoluments of the civil servants.]

⁷[**19B.Security.-** Every Person who has held the office of the Chairman or the Speaker shall be entitled for life to the suitable security, which the Federal Government shall, by notification in official Gazette, specify and make the required arrangements including services of personnel, vehicle or vehicles and allied matters.”]

20. [Repeal] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981),s.3 and II Sch.,

¹Subs. by the Finance Act, 1996 (9 of 1996),s.11, for “one lakh and fifty thousand”.

²Subs. and shall be deemed to have taken effect (w.e.f. 1-3-1985) by the Chairman and Speaker (Salaries, Allowances and Privileges), (Amdt.) Act, 1985 (2 of 1985), s. 7.

³Subs. by Act 9 of 1996, s. 11, for “seven thousand”.

⁴Subs. and Ins. by Act XVI of 2010, s.5 (w.e.f. 1-7-10).

⁵Added by Act XVII of 2012,s.8 (w.e.f. 1-7-2012).

⁶New section 17A and 19A ins. *ibid.*,

⁷Subs. by Act XXII of 2013,s.4 (w.e.f. 1-7-2013).